

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 98-015

WASTE DISCHARGE REQUIREMENTS
FOR
KEATON HOTEL
JACK IN THE BOX (DIVISION OF FOOD MAKER, INC.)
AND
THOMAS L. AND GLADYS MUMMA
WASTEWATER TREATMENT SYSTEM
YOLO COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Keaton Hotel, Jack In The Box (Division of Foodmaker, Inc.), and Thomas L. and Gladys Mumma (hereafter collectively referred to as Discharger) submitted a Report of Waste Discharge, dated 26 September 1997, for their wastewater treatment and disposal facility. The property is owned by Thomas L. and Gladys Mumma.
2. Waste Discharge Requirements Order (WDRs) No. 96-080, adopted by the Board on 23 March 1996, prescribes requirements for a discharge of wastewater flows from the Dunnigan Country Store, owned and operated by Thomas L. and Gladys Mumma and the Mumma's single family residence, as well as continued flows from the Keaton Hotel owned and operated by Richard J. Keaton. The Discharger proposes to discharge an additional 1,200 gallons per day from a new Jack In The Box Restaurant (#3465) to the disposal facility.
3. Order No. 96-080 is neither adequate nor consistent with current plans and policies of the Board.
4. The Discharger has submitted an engineering analysis, included in the Report of Waste Discharge, showing that the existing oxidation pond has sufficient capacity to accommodate the proposed wastewater flows from the requested facilities as well as containment of 100-year event storm water flows.
5. The Discharger discharges 6,500 gallons per day of domestic wastewater to a series of two oxidation ponds for treatment and disposal by evaporation and percolation.
6. The Discharger proposes to submit a Ground Water Monitoring Plan in accordance with the time schedule contained on page 6 (E. Provisions, Item 7) of these revised WDRs.
7. The Keaton Hotel, the Dunnigan Country Store, the Mumma residence, the Jack In The Box Restaurant and the wastewater system are in Section 16, T12N, R1W, MDB&M, with surface

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water drainage to Dunnigan Creek, as shown in Attachment A, which is attached hereto and part of the Order by reference.

8. The Board adopted a Water Quality Control Plan, Third Edition, for the Sacramento River and San Joaquin River Basins (hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.
9. The beneficial uses of Dunnigan Creek, tributary to the Colusa Basin Drain, are municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; navigation; ground water recharge; fresh water replenishment; and preservation and enhancement of fish, wildlife, and other aquatic resources.
10. The beneficial uses of underlying ground water are domestic, industrial, and agricultural supply.
11. The action to update waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with Title 14, California Code of Regulations (CCR), Section 15301.
12. This discharge is exempt from the requirements of Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in Title 27, CCR, Division 2, Subdivision 1, Section 2005, et seq., (hereafter Title 27). The exemption, pursuant to Section 20090(b), is based on the following:
 - a. The Board is issuing waste discharge requirements, and
 - b. The discharge complies with the Basin Plan, and
 - c. The wastewater does not need to be managed according to 22 CCR, Division 4.5, Chapter 11, as a hazardous waste.
13. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge.
14. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 96-080 is rescinded and Keaton Hotel, Jack In The Box (Division of Foodmaker, Inc.) and Thomas L. and Gladys Mumma, their agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

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A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) of Title 23, CCR, Section 2510, et seq., (hereafter Chapter 15), or 'designated,' as defined in Section 13173 of the California Water Code, is prohibited.

B. Discharge Specifications:

1. The monthly average dry weather discharge flow shall not exceed 6,500 gallons/day.
2. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas.
3. As a means of discerning compliance with Discharge Specification No. 2, the dissolved oxygen content in the upper zone (1 foot) of wastewater in ponds shall not be less than 1.0 mg/l.
4. The treatment facilities shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
5. Ponds shall not have a pH less than 6.5 or greater than 8.5.
6. Ponds shall be managed to prevent breeding of mosquitoes. In particular,
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
7. Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.

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8. Ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation and ancillary inflow and infiltration during the nonirrigation season. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than two feet (measured vertically to the lowest point of overflow).
9. On or about **1 October** of each year, available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specification 8.

C. Sludge Disposal:

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Title 27 CCR, Division 2, Subdivision 1 and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice from a previously approved practice shall be reported to the Executive Officer and U.S. Environmental Protection Agency (EPA) Regional Administrator at least 90 days in advance of the change.
3. Use and disposal of sewage shall comply with existing Federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR 503.

If the State Water Resources Control Board and the Regional Water Quality Control Boards are given the authority to implement regulations contained in 40 CFR 503, this Order may be reopened to incorporate appropriate time schedules and technical standards. The Discharger must comply with the standards and time schedules contained in 40 CFR 503 whether or not they have been incorporated into this Order.

4. The Discharger is encouraged to comply with the State Guidance Manual issued by the Department of Health Services titled Manual of Good Practice for Landspreading of Sewage Sludge.

D. Ground Water Limitations:

The discharge shall not cause underlying ground water to be degraded.

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E. Provisions:

1. The Discharger shall comply with the Monitoring and Reporting Program No. 98-015, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements", dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
3. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
4. At least **90 days** prior to termination or expiration of any lease, contract, or agreement involving disposal or reclamation areas or off-site reuse of effluent, used to justify the capacity authorized herein and assure compliance with this Order, the Discharger shall notify the Board in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this Order.
5. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
6. Thomas L. and Gladys Mumma, as owner of the real property at which the discharge will occur, is ultimately responsible for ensuring compliance with these requirements. Keaton Hotels retains primary responsibility for compliance with these requirements, including day-to-day operations and monitoring.
7. The Discharger must implement the following time schedule for ground water monitoring well installation:

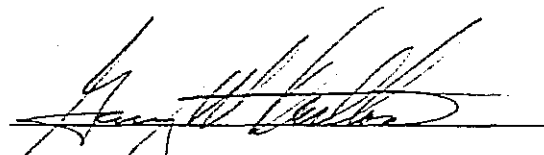
<u>Task</u>	<u>Compliance Date</u>
Submit groundwater monitoring plan proposal for approval	12 January 1998

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<u>Task</u>	<u>Compliance Date</u>
Initiate monitoring wells construction	26 January 1998
Complete installation of monitoring wells	16 February 1998
Initiate sampling program as indicated in the Monitoring and Reporting Program No. 98-015	1 March 1998
8. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.	
9. If reclaimed water is used for construction purposes, it shall comply with the most current edition of "Guidelines for Use of Reclaimed Water for Construction Purposes". Other uses of reclaimed water not specifically authorized herein shall be subject to the approval of the Executive Officer and shall comply with 22 CCR, Division 4.	
10. The Board will review this Order periodically and will revise requirements when necessary.	

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 23 January 1998.



GARY M. CARLTON, Executive Officer

GAI:dlk/23 January 1998

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
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MONITORING AND REPORTING PROGRAM NO. 98-015
FOR
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Specific sample station locations shall be established under direction of the Board's staff and a description of the stations shall be attached to this Order.

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the municipal water supply can be obtained. Water supply monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Sampling Frequency</u>
Electrical Conductivity @ 25°C	µmhos/cm	Annually

POND MONITORING

A sampling station shall be established where a representative sample of the pond water can be obtained. The wastewater pond shall be monitored for at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Sampling Frequency</u>
Electrical Conductivity @ 25°C	µmhos/cm	Monthly
pH	pH units	Monthly
Freeboard	feet	Monthly
Color	observation	Monthly
Odors	observation	Monthly
Levee Condition	observation	Monthly

GROUND WATER MONITORING

Monitoring wells will be sampled for the following:

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<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Ground Water Elevation	Feet, MSL measured to nearest 0.01 foot	Grab	Quarterly
pH	pH units	Grab	Monthly
Specific Conductivity	µmhos/cm	Grab	Monthly
Nitrate nitrogen (NO ₃) as NO ₃	mg/l	Grab	Monthly

REPORTING

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly the compliance with waste discharge requirements.

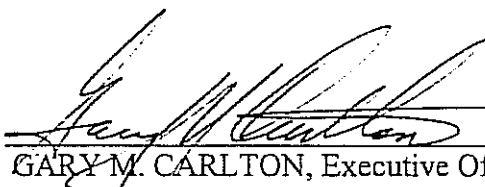
Monthly monitoring reports shall be submitted to the Regional Board by the **20th day** of the following month.

The results of any monitoring done more frequently than required at the locations specified in the Monitoring and Reporting Program shall be reported to the Board.

Upon written request of the Board, the Discharger shall submit a report to the Board by **30 January** of each year. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. In addition, the Discharger shall discuss the compliance record and the corrective actions taken or planned which may be needed to bring the discharge into full compliance with the waste discharge requirements.

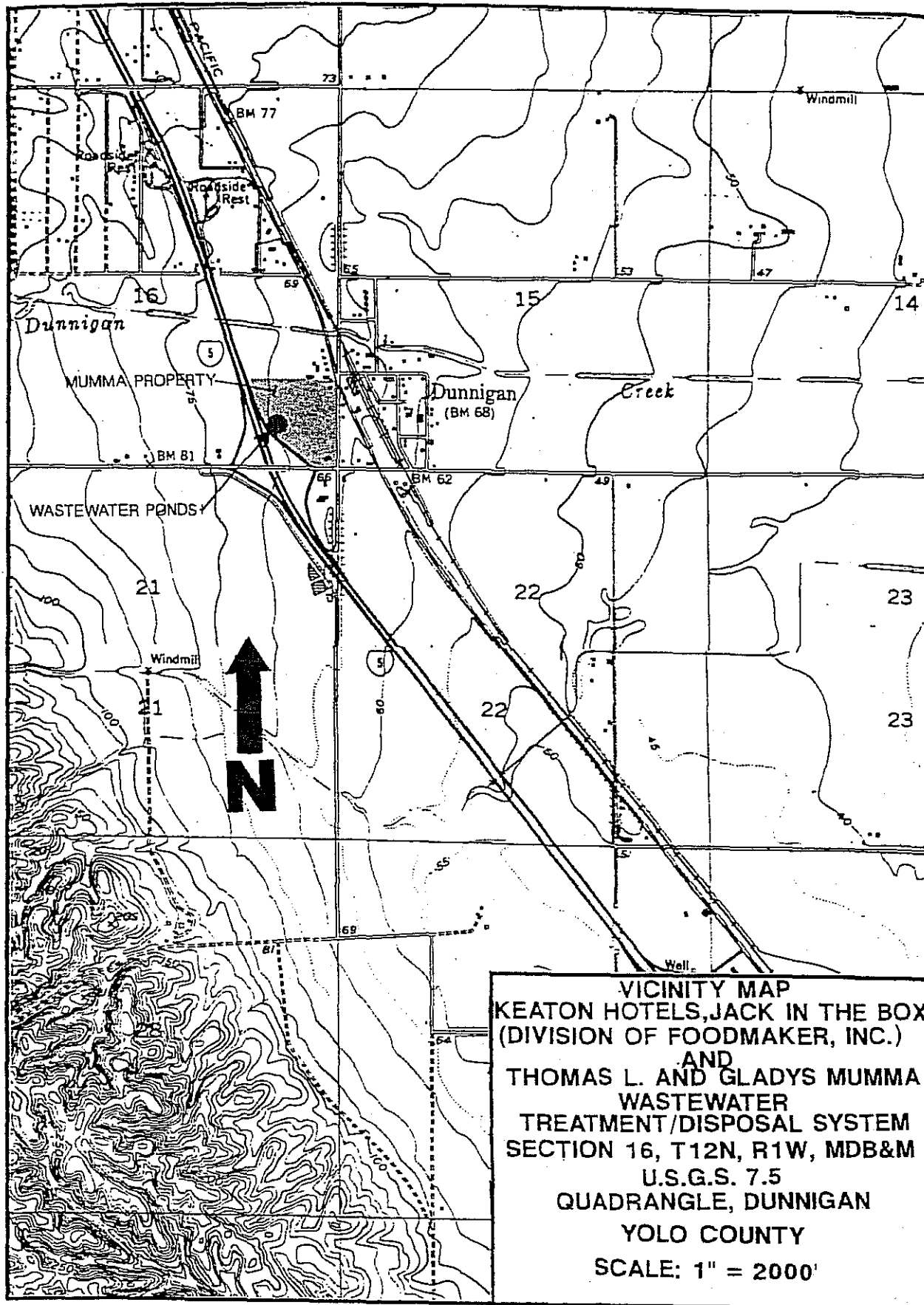
The Discharger shall implement the above monitoring program as of the date of this Order.

Ordered by:


GARY M. CARLTON, Executive Officer

23 January 1998

(Date)



INFORMATION SHEET

KEATON HOTEL
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The Discharger has submitted an engineering analysis showing that the existing oxidation ponds have sufficient capacity to accommodate the proposed wastewater flows from the new facility as well as containment of 100-year event storm water flows. The Discharger proposes to discharge 6,500 gallons per day of domestic wastewater. These WDRs have been revised to include the additional wastewater flow and the ground water monitoring well installation. Surface water drainage is to Dunnigan Creek.

GAI:dlk/23 January 1998